

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. _____

(First, Middle, and Last name) DEFENDANT

PETITION TO SEAL PURSUANT TO ACT 531 OF 1993 ACA§16-93-1201, Et. Seq. and ACT 1460 OF 2013 A.C.A.16-90-1401, Et. Seq.

Comes the Defendant and for his/her petition to seal the record states:

1. The defendant was arrested on the _____ day of _____, _____, and charged with the offense(s) of _____

A Class _____ ☐ felony ☐ misdemeanor in violation of A.C.A. § _____.

2. The defendant was convicted of the offense(s) of: _____, in violation of A.C.A. § _____, on the _____ day of _____, _____.

3. The offense(s) listed above is/are a target offense as defined in A.C.A. §16-93-1202(10)(A)(i) or (ii) and are not violent or sexual offenses as defined in A.C.A. §16-93-1202(10)(A)(iii) or (iv)

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PETITION TO SEAL PURSUANT TO ACT 531 OF 1993 ACA§16-93-1201, Et. Seq. and ACT 1460 OF 2013 A.C.A.16-90-1401, Et. Seq.

Comes the Defendant and for his/her petition to seal the record states:

1. The defendant was arrested on the _____ day of _____, _____, and charged with the offense(s) of _____

A Class _____ ☐ felony ☐ misdemeanor in violation of A.C.A. § _____.

2. The defendant was convicted of the offense(s) of: _____, in violation of A.C.A. § _____, on the _____ day of _____, _____.

3. The offense(s) listed above is/are a target offense as defined in A.C.A. §16-93-1202(10)(A)(i) or (ii) and are not violent or sexual offenses as defined in A.C.A. §16-93-1202(10)(A)(iii) or (iv)

4. The Defendant was sentenced under Act 531 of 1993, as codified at A.C.A. §16-93-1201, et seq.

5. The Defendant has successfully completed:

☐ A term in the Arkansas Department of Corrections with judicial transfer to the Arkansas Department of Community Corrections; or
☐ A suspended imposition of sentence, with or without supervision; or

☐ Supervised or unsupervised probation; or

☐ A term in the county jail for a misdemeanor committed after January 1, 2007.

6. The Defendant has no more than one (1) prior felony conviction and the prior conviction was not for an offense listed in A.C.A. §16-93-1207(b)(1).

7. The Defendant has satisfactorily fulfilled the terms and conditions of probation or has been released by the court prior to that time. The Defendant has been rehabilitated.

8. ☐ Defendant has no pending felony charges in any state or federal court; or

☐ Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:

9. The Defendant has paid all filing fees required to be paid with the filing of this Petition mandated by A.C.A. §16-90-1419.

4. The Defendant was sentenced under Act 531 of 1993, as codified at A.C.A. §16-93-1201, et seq.

5. The Defendant has successfully completed:

☐ A term in the Arkansas Department of Corrections with judicial transfer to the Arkansas Department of Community Corrections; or
☐ A suspended imposition of sentence, with or without supervision; or

☐ Supervised or unsupervised probation; or

☐ A term in the county jail for a misdemeanor committed after January 1, 2007.

6. The Defendant has no more than one (1) prior felony conviction and the prior conviction was not for an offense listed in A.C.A. §16-93-1207(b)(1).

7. The Defendant has satisfactorily fulfilled the terms and conditions of probation or has been released by the court prior to that time. The Defendant has been rehabilitated.

8. ☐ Defendant has no pending felony charges in any state or federal court; or

☐ Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:

9. The Defendant has paid all filing fees required to be paid with the filing of this Petition mandated by A.C.A. §16-90-1419.

10. As evidenced by my signature below, the above information is true and correct to the best of Defendant's knowledge.

WHEREFORE, the Defendant, _____,
prays this Court enter an Order Sealing the above referenced case
pursuant to A.C.A. §16-93-1201, et seq.

Defendant's Signature

Date

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____ Arrest Tracking Number _____
Sex _____ SID No. _____
DOB _____ FBI No. (if known) _____

10. As evidenced by my signature below, the above information is true and correct to the best of Defendant's knowledge.

WHEREFORE, the Defendant, _____,
prays this Court enter an Order Sealing the above referenced case
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Defendant's Signature

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Race _____ Arrest Tracking Number _____
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Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's Attorney

Date

Defendant Address, Street: _____
City: _____ State: _____ Zip code: _____

Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's Attorney

Date

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City: _____ State: _____ Zip code: _____